Master Services Agreement

Fernway and Quaywise Couriers, signed 20 January 2026

This agreement is between Fernway, an e-bike subscription company ("Fernway"), and Quaywise Couriers ("Courier"). Both companies are fictional.

1. Definitions

"Booking" means a delivery or a collection of a bike that Fernway books with Courier. "Slot" means the two-hour window agreed with the customer for a Booking. "Fees" means the amounts in clause 4.

2. Services

2.1 Courier delivers new bikes from Fernway's warehouse to customers' homes and collects bikes at the end of a subscription.

2.2 Courier works in Berlin and Hamburg. Other cities need a written change order.

2.3 Courier confirms each Booking within one working day and sends Fernway a proof of delivery with the customer's signature.

3. Term and renewal

3.1 This Agreement starts on 1 February 2026 and runs for 24 months.

3.2 It then renews automatically for further periods of 12 months unless either party gives written notice at least 60 days before the end of the current term.

4. Fees and payment

4.1 Fernway pays 18 EUR for each delivery and 15 EUR for each collection.

4.2 Courier invoices at the end of each month. Fernway pays within 30 days of receiving a correct invoice.

4.3 Courier may not charge fuel or congestion surcharges unless Fernway agrees in writing.

5. Service levels

5.1 Courier completes at least 95% of Bookings inside their Slot in each calendar month.

5.2 For each full percentage point below 95%, Fernway receives a credit of 2% of that month's Fees, up to 10% of that month's Fees.

5.3 Credits are Fernway's only financial remedy for missed Slots.

6. Handover to customers

6.1 Courier checks the customer's name against the Booking before handing over a bike and its key.

6.2 Courier does not leave a bike with a neighbour or at a door.

7. Personnel

7.1 Courier uses trained staff who carry Courier identification.

7.2 Courier remains responsible for its subcontractors.

8. Data protection

8.1 The parties' data processing addendum applies to customer personal data that Courier handles under this Agreement.

8.2 Courier may engage sub-processors to perform the Services and will keep a list of them available to Fernway on request.

9. Insurance

9.1 Courier maintains public liability insurance of at least 1,000,000 EUR for each occurrence during the term.

9.2 Courier sends Fernway a current insurance certificate every year.

10. Liability

10.1 Each party's total liability under this Agreement is limited to the Fees paid or payable in the 3 months before the event that gave rise to the claim.

10.2 Clause 10.1 does not limit liability for death or personal injury caused by negligence, or for fraud.

11. Confidentiality

Each party keeps the other's confidential information confidential during the term and for 3 years after it ends.

12. Termination

12.1 Either party may terminate this Agreement if the other commits a material breach and does not remedy it within 30 days of written notice.

12.2 Courier may terminate this Agreement for convenience on 30 days' written notice.

13. Governing law

German law governs this Agreement. The courts of Berlin have jurisdiction.

Signed for Fernway: Head of Operations

Signed for Courier: Managing Director